

26SMCV01843 26SMCV01843

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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

August

5, 2026

CASE NUMBER

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MOTION

Petition

to Compel Arbitration

MOVING PARTY

Defendants

Tzur Gabi, D.D.S.; Gabi Dental Corp. d/b/a Primary Integrative Dentistry and
Dentalogics by Dr. Gabi

OPPOSING PARTY

Plaintiff

Martha Beatriz Ticas

MOTION

This case arises from allegations of dental malpractice.

On June 5, 2026, Plaintiff Martha Beatriz Ticas ("Plaintiff") filed suit against Defendants Tzur Gabi, D.D.S.; Gabi Dental Corp. d/b/a Primary Integrative Dentistry and Dentalogics by Dr. Gabi ("Defendants") alleging two causes of action for (1) professional negligence (dental malpractice) and (2) fraudulent concealment.

Defendants now petition to compel Plaintiff's claims to arbitration. Plaintiff opposes the petition.

ANALYSIS

1.

MOTION TO COMPEL ARBITRATION – LEGAL STANDARDS

"[T]he advantages of arbitration include a presumptively less costly, more expeditious manner of resolving disputes. It follows a party to a valid arbitration agreement has a contractual right to have its dispute with another party to the contract resolved quickly and inexpensively." (Henry v. Alcove Investment, Inc. (1991) 233 Cal.App.3d 94, 99–100 [cleaned up].)

Thus, "on petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists." (Code Civ. Proc., § 1281.2; see also

EFund

Capital Partners v. Pless (2007) 150 Cal.App.4th 1311, 1320 [the language in section 1281.2 compelling arbitration is mandatory].) The right to compel arbitration exists unless the court finds that the right has been waived by a party's conduct, other grounds exist for revocation of the agreement, or where

a pending court action arising out of the same transaction creates the possibility of conflicting rulings on a common issue of law or fact. (Code Civ. Proc., § 1281.2, subds. (a)-(c).)

“On a petition to compel arbitration, the trial court must first determine whether an agreement to arbitrate the controversy exists.

Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. The party seeking arbitration can meet its initial burden by attaching to the petition a copy of the arbitration agreement purporting to bear the respondent's signature.” (Bannister v. Marinidence Opco, LLC (2021) 64 Cal.App.5th 541, 543-544 [cleaned up].) The party seeking to compel arbitration must also “plead and prove a prior demand for arbitration and a refusal to arbitrate under the agreement.” (Mansouri v. Superior Court (2010) 181 Cal.App.4th 633, 640-641.)

And while the moving party on a motion to compel arbitration “bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, [a] party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. The trial court sits as the trier of fact, weighing all the affidavits, declarations, and other documentary evidence, and any oral testimony the court may receive at its discretion, to reach a final determination.” (Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 842 [cleaned up]; see also Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236 [“The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability”].)

2.

ENFORCEABLE ARBITRATION AGREEMENTS

Petitioner neither alleges, nor offers evidence showing, Respondent has improperly denied Petitioner's demand for arbitration pursuant to an arbitration agreement with Respondent. But the

opposing party's refusal to arbitrate may be demonstrated by its filing of a lawsuit rather than commencing arbitration proceedings, as required by the parties' agreement. (See Espejo v. Southern California Permanente Medical Group (2016) 246 Cal.App.4th 1047, 1060 [moving party meets initial burden by showing agreement exists, and need only establish its validity on challenge by opponent].)

In support of the petition, Defendants advance the "Treatment & Arbitration Agreement" Plaintiff signed on September 30, 2024, which provides as follows:

It is understood that any dispute as to medical malpractice, that is as to whether any dental services rendered were unnecessary or unauthorized or improperly, negligently, or incompetently rendered will be determined by submission to arbitration as provided by California law and not by a lawsuit or resort to court process except as California law provides for judicial review of arbitration. Both parties to this contract, by entering into it, are giving up their constitutional right to have any such dispute in a court of law before a jury, and instead are accepting the arbitration. Within 15 days after PATIENT or ATTENDING DENTIST shall give notice to the other demanding arbitration of such controversy shall appoint a licensed dentist as an arbitrator and give such appointment to the other. Within a reasonable time, the two arbitrators shall select another licensed dentist as the third arbitrator. The arbitrator shall hold a hearing within a reasonable time. All notices or other papers required to be served will be by United State mail. The arbitration shall be conducted in accordance with and governed by the provision of Title 9 of the California Code of Civil Procedure.

NOTICE: BY SIGNING THIS CONTRACT YOU ARE AGREEING TO HAVE ANY ISSUES OF DENTAL MALPRACTICE DECIDED BY NEUTRAL ARBITRATION AND YOU ARE GIVING UP YOUR RIGHT TO A JURY OR COURT TRIAL.

(Ex.
A to Isfeld Decl.)

Plaintiff does not deny that this agreement exists, but rather argues that it is unenforceable because it does not include the mandatory disclosures of Code of Civil Procedure section 1295, subdivision (b) in bold red type.

Code of Civil procedure section
1295, subdivision (b) provides:

(b) Immediately before the signature line
provided for the individual contracting for the medical services must appear
the following in at least 10-point bold red type:

“NOTICE: BY SIGNING THIS CONTRACT YOU ARE
AGREEING TO HAVE ANY ISSUE OF MEDICAL MALPRACTICE DECIDED BY NEUTRAL
ARBITRATION AND YOU ARE GIVING UP YOUR RIGHT TO A JURY OR COURT TRIAL. SEE
ARTICLE 1 OF THIS CONTRACT.”

(Code
Civ. Proc., § 1295, subd. (b).)

The disclosure language appears directly
above the signature line, but it is neither bolded nor in red type.

In support, Plaintiff cites to *Rosenfield*
v. Superior Court (1983) 143 Cal.App.3d 198, 200, which held, “the failure
of a health care contract to contain the advisements specified in subdivisions
(a) and (b) of section 1295 automatically renders unenforceable the arbitration
provisions of such contract[.]” The
Court of Appeal further explained: “The very requirement that jury-waiver
advisements be included in “all” medical service arbitration contracts
in specified language, and be in prominent locations in 10-point bold red type,
evidences an implicit legislative determination that they are critical to
safeguard against patients unknowingly waiving their constitutional right to
jury trial.” (Id. at p. 202.)

Similarly, in *Bolanos v.*
Khalatian (1991) 231 Cal.App.3d 1586, 1589, fn. 3, the Court of Appeal
explained: “The quoted language contained in Article 1 and
the warning in 10-point bold red type are required for medical malpractice
arbitration agreements.”
(Emphasis added.)

Thus, here, because the required language does not appear in bolded
type or red type, as required by the statute, the arbitration provision is

unenforceable.

CONCLUSION

Finding the arbitration provision unenforceable because the required disclosure language is neither bolded nor in red type, as required by Code of Civil Procedure section 1295, subdivision (b), the Court denies Defendants' Petition to Compel Arbitration.

Defendants shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: August 5, 2026 ____/s/____

Michael
E. Whitaker

Judge
of the Superior Court